

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 7, 2026, AT 8:30 A.M.

14. S-CV-0056028 JANSEN, DANIEL v. J.B. HUNT TRANSPORT SERVICES

Defendant State of California by and Through the California Highway Patrol's
Demurrer to Complaint

Defendant demurs to the fourth cause of action in plaintiff's complaint on the grounds the complaint does not allege facts sufficient to state the fourth cause of action for dangerous condition of public property. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Government Code Section 835 provides that
a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:
(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Government Code Section 830, subdivision (a) clarifies that "'Dangerous condition'" means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used."

Plaintiffs alleging a dangerous condition of public property cause of action against public entities cannot generally allege what the condition is but instead "must specify in what manner the condition constituted a dangerous condition." (*Summerfield v.*

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City of Inglewood (2023) 96 Cal.App.5th 983, 994.) To that end, “[a] dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Ibid.* [internal quotation marks omitted].) Importantly, plaintiff must plead the public entity had ownership or control of the property at the time of the injury. (*Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 984.)

Streets and Highways Code section 90 provides the Department of Transportation “shall have full possession and control of all state highways and all property and rights in property acquired for state highway purposes.” (Sts. & Hy. Code, § 90.) Additionally, the Department of Transportation is responsible for improving and maintaining the state highways. (*Id.* at § 91.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state a dangerous condition of public property cause of action against defendant as there are insufficient allegations that defendant owned or controlled the area where the alleged dangerous condition of public property existed.

Accordingly, defendant’s demurrer is sustained with leave to amend as to the fourth cause of action. Plaintiff shall file and serve an amended complaint on or before **May 18, 2026**.

15. S-CV-0056216 SCHLEIN, BRIAN v. PACHECO-ZEPEDA, LUIS

Defendants Luis Alberto Pacheco-Zepeda and Lilyana Marie Jordan’s Demurrer to Plaintiff, Brian Schlein’s Complaint

Defendants demurs to the second cause of action for intentional tort in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the second cause of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of